

inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Khoury, supra*, at p. 616.)

As alleged, Defendants can reasonably determine the general crux of the allegations in the complaint. None of the causes of action at issue are so incomprehensible that any response is precluded.

The court OVERRULES the special demurrer for uncertainty under CCP § 430.10(f).

3.

CASE #	CASE NAME	HEARING NAME
CVME2513284	HIGHTOWER VS CONCENTRA HEALTH SERVICES INC	MOTION TO STRIKE

Tentative Ruling:

C. Motion to Strike – Merits

Defendants also move to strike Plaintiff's request for punitive damages, UCL restitution, and injunctive relief. The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) "[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

Given the fraud and UCL causes of action are subject to demurrer, the motion to strike is moot.

4.

CASE #	CASE NAME	HEARING NAME
CVME2513284	HIGHTOWER VS CONCENTRA HEALTH SERVICES INC	MOTION FOR SANCTIONS

Tentative Ruling:

The court is requiring a hearing. The court will address this at the hearing after it addresses the motion to deem matters admitted.

5.